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Attorneys for Petitioner,
HYUN JU MINTON

ELECTRONICALLY
F I L E D
Superior Court of California,
County of San Francisco
10/02/2025
Clerk of the Court
BY: MICHAEL RAYRAY
Deputy Clerk

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SAN FRANCISCO

In Re: Estate of Tae Jung Kim	CASE NO. PES-24-307296 **SUPPLEMENTAL RESPONSE PROBATE NOTES** Date: October 7, 2025 Time: 9:00 a.m. Dept.: 204 Judge:

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In addressing the issues raised by the Probate Examiner in the Probate Examiner's Notes dated September 22, 2025, Petitioners respond as follows:

Issue 1) A copy of the remote appearance information required by LRSF 14.1(C)(6) must be attached to and served with the DE-120 form at least 15 days before the hearing, absent a waiver signed by each person entitled to notice.

On September 22, 2025, Petitioner filed separate Notice of Remote Appearances for Attorneys Ronald P. Wargo and Chadrick J. Cunningham.

Supplemental Issue 1) Note: RA-010 form (Notice of Remote Appearance) is NOT the document required by LRSF 14.1(C)(6). See below. If petitioner has authority to waive notice under the beneficiary's power of attorney, a signed waiver must be filed to avoid a continuance.

Attached as Exhibit A is a true and correct copy of the Waiver of Hearing that was submitted for filing today, October 2, 2025 via File&Serve Express.

Issue 2) The caption of the proposed order must begin with "Order for Final Distribution". See LRSF 14.35(I)(6)(b).

On September 22, 2025, Petitioner re-submitted the proposed order to comply with San Francisco Local Rule 14.35(I)(6)(b) via File&Serve Express as Transaction No. 77137143.

Supplemental Issue 2) Note: This issue has been resolved.

Issue 3) Paragraph 12 of petition: Exhibit A did not include a detailed schedule of receipts required by CRC 7.550(b)(6) & 7.705(b), nor did Exhibit F itemize receipts in compliance with Probate Code section 1062(a)(date, source, nature/purpose of EACH receipt must be separately reported). Note: If any receipt represents a refund of any disbursement from the estate, it must be deducted from the statutory fee base receipts.

Paragraph 12 Exhibit A: *Petitioner inadvertently attached the wrong document as Exhibit A. Petitioner hereby restates Paragraph 12 as follows and attaches Exhibit A*:

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"12. **Receipts**. During the period of administration, the Estate received gross receipts (excluding principal) in the total amount of $5,653.14, consisting of interest income, later found liquid assets and refunds for escrow account, 2023 state taxes, and medical expenses. A Summary of all Estate Assets, Gains and Losses on Assets, and Receipts received during the administration is attached hereto and incorporated herein as Exhibit F."

Paragraph 26, Exhibit F: Petitioner inadvertently attached the wrong document as Exhibit F. Petitioner hereby restates Paragraph 26 as follows and attaches Exhibit F:

"26. Statutory Compensation. Petitioner, who is the Administrator of the Estate, and her attorneys have rendered valuable services to the Estate for which statutory compensation is allowed by California Probate Code sections 10800 and 10810, respectively. Petitioner waives her statutory compensation as set forth in ***Exhibit E***, attached hereto and incorporated by reference. Petitioner requests the Court authorize the payment of statutory fees and commissions, from the estate in the statutory amount as noted below:

Attorneys: $19,517.18

A summary of Estate Assets and Receipts used to calculate the Fee Base is attached hereto as ***Exhibit A.*** The statutory compensation amount was determined as follows.

FEE BASE

Assets on Hand at date of death	$	820,205.72
Receipts	$	
Gains on Sale	$	
Losses on Sales	$	
Fee Base:	**$**	**820,205.72**

FEE COMPUTATION

4% of first $100,000	$	4,000.00
3% of next $100,000	$	3,000.00
2% of next $625,858.86	$	12,496.00
Total Fee:	**$**	**19,517.18**"

Supplemental Issue 3) Note: Exhibit A attached to Response to Notes filed on 9/25 did not comply with Probate Code section 1062(a) to constitute a detailed schedule of receipts required by CRC 7.550(b)(6) & 7.705(b). For example, each interest payment must be

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separately reported with a payment date and payor; "Later fund liquid assets held at Wells Fargo" also requires an additional explanation, as only Bank of American accounts have been inventoried and appraised; and "Additional Payment from Escrow on Sale of Residence" is a partial refund of sale expenses disbursed from the estate and cannot be added to the statutory fee base receipts. Those issues need not be addressed, however, if petitioner's attorneys agree to calculate their statutory fees based on the inventory and appraisal values ($820,205.72) without adding receipts ($5,653.14) and reduce their fees by $113.07 (fees would be $19,404.11 instead of $19,517.18 as prayed).

Petitioner hereby agrees to calculate statutory fees based on the inventory and appraisal value of $820,205.72 and will accept the statutory fee of $19,404.11 instead of $19,517.18 as originally prayed for.

Attached as Exhibit B is a true and correct copy of the updated proposed order that was submitted for filing today, October 2, 2025 via File&Serve Express.

Issue 4) Paragraphs 15 & 30 & Exhibits B & G: An allegation must be made as to whether petitioner's authority under the decedent's mother's power of attorney has not been terminated, together with an allegation identifying the power of attorney provision(s) authorizing the agent to waive an account (and receive distribution if applicable, as required by LRSF 14.35(C)).

Petitioner hereby represents that decedent's mother's power of attorney has not been terminated. Paragraph 1 of the Massachusetts power of attorney attached as Exhibit G to the petition has general provisions that allow the agent, Petitioner, to receive dividends, interest, and income arising from the mother's assets, and to execute such instruments of transfer and assignment as may be necessary or desirable in connection therewith. Paragraph 14 of the same power of attorney permits Petitioner as agent to "compromise, settle, and adjust all claims and demands whatsoever due and hereafter to become due or belonging to . . . [decedent's mother]." Finally, Paragraph 22 of the same power of attorney gives Petitioner "full power to act in the management and disposition of all [decedent's mother's] estate, affairs, and property of every kind

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and wherever situate, in such manner and with such authority as [decedent's mother] might exercise if personally present, and to do all acts which [Petitioner] deems necessary in carrying out the foregoing."

Supplemental Issue 4) Note: This issue has been resolved.

Issue 5) Paragraph 19b & Exhibit D:

Issue 5) Petitioner hereby adds the below claim to Exhibit D referenced in Paragraph 19b and provides the following status:

Creditor	Amount/Nature	Claim Date	Release Date
Bank of America (4459)	$497,782.13 Paid in full plus interest for $502,019.97 Mortgage	August 28, 2024	Unknown

The above claim was paid through closing on the sale of the real property. See the Final Seller's Statement attached as Exhibit C to the Petition.

Issue 5.i) No DE-174 form is on file in response to Bank of America's creditor claim ($14,086.41) filed on 6/11/24, nor is Bank of America's withdrawal, satisfaction, and/or release of its claim on file.

Petitioner did not file a DE-174 for any creditor, including Bank of America as all debts were deemed valid. The only asset of the estate was a piece of real property which had to be sold to pay for Decedent's debts. Petitioner was unaware of the value the sale of the house would bring, therefore was negotiating with <u>all</u> known creditors to reduce their claims. As of the filing of the Final Petition, Bank of America has not filed their release. Petitioner has included as Exhibit D.1 copies of the checks showing payment of the outstanding claims of Bank of America.

Issue 5.ii) No DE-174 form is on file in response to Bank of America's creditor claim ($497,782.13) filed on 8/28/24, nor is Bank of America's withdrawal, satisfaction, and/or release of its claim on file.

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Petitioner did not file a DE-174 as the claim was secured and was paid out of the closing costs for the sale of the real property. See the Final Seller's Statement attached as Exhibit C to the Petition.

Paragraph 19.c: In addition, Petitioner inadvertently identified the wrong Exhibit for Estate Admin Expenses. Petitioner hereby restates paragraph 19c as follows:

"c. Estate Administration Expenses. The Estate settled expenses and costs associated with the maintenance of Estate assets, preparation of assets for sale, preparation and payment of Decedent's personal taxes and court fees. The total administration expense is $**91,209.19**. A summary of the administration expenses is set forth in ***Exhibit F."***

Supplemental Issue 5) Paragraph 19b & Exhibit D:

i) No DE-174 form is on file in response to Bank of America's creditor claim ($14,086.41) filed on 6/11/24, nor is Bank of America's withdrawal, satisfaction, and/or release of its claim on file. Note: Absent Bank of America's signed withdrawal, satisfaction, and/or release of its claim on file, the DE-174 form must be filed and served – see section 9250. Unless the claim is allowed in full, the 90-day statutory period must elapse from the date of service before this petition can be granted.

ii) No DE-174 form is on file in response to Bank of America's creditor claim ($497,782.13) filed on 8/28/24, nor is Bank of America's withdrawal, satisfaction, and/or release of its claim on file. Note: Absent Bank of America's signed withdrawal, satisfaction, and/or release of its claim on file, the DE-174 form must be filed and served – see section 9250. Unless the claim is allowed in full, the 90-day statutory period must elapse from the date of service before this petition can be granted.

Attached as Exhibit C and D, respectively are a true and correct copy of the Allowance of Creditor's Claim for Bank of America's Creditor Claim filed on June11, 2024 for $14,086.41 and

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Bank of America's creditor claim filed on August 28, 2025 for $497,782.13 to comply with Probate Code § 9250 that was submitted for filing today, October 2, 2025 via File&Serve Express.

Dated: 10/2/2025

FRIEDEMANN GOLDBERG WARGO HESS LLP

Chadrick J. Cunningham

CHADRICK J. CUNNINGHAM
Attorney for Petitioner
HYUN JU MINTON

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VERIFICATION

I, HYUN JU MINTON, am the Petitioner in the above-captioned matter. I am familiar with the contents of the foregoing **SUPPLEMENTAL RESPONSE TO PROBATE NOTES**. The information supplied therein is based on my own personal knowledge and/or has been supplied by my attorneys or other agents and/or compiled from available documents. The information contained in the foregoing document is true, except as to the matters which were provided by my attorneys or other agents or compiled from available documents, including all contentions and opinions, and, as to those matters, I am informed and believe that they are true.

I declare under penalty of perjury under the laws of the State of Massachusetts that the foregoing is true and correct.

Executed on 10/2/2025, at Boston, Massachusetts.

HYUN JU MINTON

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EXHIBIT A

Docusign Envelope ID: FB938F82-2B61-442F-B574-4382C461C5DF

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rwargo@frigolaw.com
CHADRICK J. CUNNINGHAM (SBN 290047)
cunningham@frigolaw.com
FRIEDEMANN GOLDBERG WARGO HESS LLP
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Santa Rosa, California 95403
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Attorneys for Petitioner,
HYUN JU MINTON

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SAN FRANCISCO

In Re Estate of Tae Jung Kim	CASE NO. PES-24-307296 **WAIVER OF NOTICE OF HEARING** Date: October 7, 2025 Time: 9:00 a.m. Dept.: 204

Docusign Envelope ID: FB938F82-2B61-442F-B574-4382C461C5DF

I, HYUN JU MINTON, declare that I am the power of attorney for Bok Za Kim, the sole beneficiary of the Estate of Tae Jung Kim (the "Estate") and that I have reviewed the Petition for Approval of First and Final Report; Waiver of Account; Allowance of Statutory Compensation to Administrator and Attorneys; and Approval for Final Distribution (the "Petition"). Pursuant to Paragraph 22 of the Power of Attorney, I have the full power to act in the management and disposition of all Bok Za Kim's estate, affairs, and property of every kind and wherever situate, in such manner and with such authority as Bok Za Kim might exercise if personally present, and to do all acts which I deem necessary in carrying out the foregoing.

Therefore, as Power of Attorney for Bok Za Kim, I hereby consent to the Petition and all relief requested therein. In addition, I waive notice of hearing on the Petition and agree to the granting of the relief requested in the Petition without further noticed hearing.

Dated: 10/2/2025

BOK ZA KIM by HYUN JU MINTON, her Power of Attorney

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EXHIBIT B

Docusign Envelope ID: FB938F82-2B61-442F-B574-4382C461C5DF

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Attorneys for Petitioner,
HYUN JU MINTON, Administrator

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SAN FRANCISCO

Estate of Tae Jung Kim, Decedent.	CASE NO. PES-24-307296 **ORDER FOR FINAL DISTRIBUTION; APPROVING FIRST AND FINAL REPORT; WAIVER OF ACCOUNT; AND ALLOWANCE OF STATUTORY COMPENSATION TO ATTORNEYS** Date: Time: 9:00 am Dept.: 204 Judge: Ross C. Moody

Docusign Envelope ID: FB938F82-2B61-442F-B574-4382C461C5DF

The Petition for Approval of First and Final Report; Waiver of Account; Allowance of Statutory Compensation to Administrator and Attorneys; and for Final Distribution (the "Petition") came on regularly for hearing on _____, in Department _____ of the above-entitled Court. The Honorable _____ presiding. Having duly considered the pleadings and all papers submitted, oral testimony and argument of counsel, and good cause appearing therefore, IT IS HEREBY ORDERED:

A. That notice of the time and place of this hearing has been given as required by law;

B. That all acts and proceedings of Petitioner as the Administrator stated in the Petition are confirmed and approved;

C. That the First and Final Report of Administrator is approved as filed;

D. As requested in the Petition, the Petitioner is authorized and directed to distribute the Estate in the position of the Petitioner as follows:

i. Estate cash in the amount of **$156,541.49** shall be distributed as follows:

Heir	Amount	Percentage
Bok Za Kim	$156,541.49	100%

E. That Petitioner is authorized and instructed to pay the law firm of Friedemann Goldberg Wargo Hess LLP statutory attorney's fees from estate accounts in an amount of **$19,404.11.18** for ordinary services rendered in the administration the Estate;

F. Petitioner is authorized to retain **$3,500** in cash for closing expenses of administration and to deliver the unused part to the beneficiaries of the estate, as set forth in the petition without further court order, after the closing expenses have been paid; and

G. That any other after-discovered property of the Decedent, whether or not now known, be distributed outright to BOK ZA KIM as set forth in the Petition.

Dated: _____ _____

Judge of the Superior Court

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EXHIBIT C

Docusign Envelope ID: FB938F82-2B61-442F-B574-4382C461C5DF

ATTORNEY OR PARTY WITHOUT ATTORNEY *(Name, State Bar number, and address)*:
Ronald P. Wargo (SBN 197018)/Chadrick J. Cunningham (SBN 290047)
FRIEDEMANN GOLDBERG WARGO HESS LLP
400 Aviation Blvd., Ste. 200
Santa Rosa, CA 95403
TELEPHONE NO.: (707) 543-4900 FAX NO. *(Optional)*: (707) 543-4910
E-MAIL ADDRESS *(Optional)*: rwargo@frigolaw.com; ccunningham@frigolaw.com
ATTORNEY FOR *(Name)*: Petitioner, HYUN JU MINTON, Administrator

FOR COURT USE ONLY

SUPERIOR COURT OF CALIFORNIA, COUNTY OF
STREET ADDRESS: 400 McAllister Street
MAILING ADDRESS: 400 McAllister Street
CITY AND ZIP CODE: San Francisco, CA 94102
BRANCH NAME: Civic Center Courthouse

ESTATE OF
(Name): Estate of Tae Jung Kim
DECEDENT

ALLOWANCE OR REJECTION OF CREDITOR'S CLAIM

CASE NUMBER: PES-24-307296

NOTE TO PERSONAL REPRESENTATIVE

Attach a copy of the creditor's claim to this form. If approval or rejection by the court is not required, do not include any pages attached to the creditor's claim.

PERSONAL REPRESENTATIVE'S ALLOWANCE OR REJECTION

1. Name of creditor *(specify)*: Bank of America, N.A.
2. The claim was filed on *(date)*: June 11, 2024
3. Date of first issuance of letters: June 26, 2024
4. Date of *Notice of Administration*: July 12, 2024
5. Date of decedent's death: September 23, 2023
6. Estimated value of estate: $ 820,205.72
7. Total amount of the claim: $ 14,086.41
8. [✓] Claim is allowed for: $ 14,086.41 *(The court must approve certain claims before they are paid.)*
9. [ ] Claim is rejected for: $ *(A creditor has 90 days to act on a rejected claim.* See box below.)*
10. Notice of allowance or rejection given on *(date)*:
11. [✓] The personal representative is authorized to administer the estate under the Independent Administration of Estates Act.

Date: 10/2/2025

HYUN JU MINTON
(TYPE OR PRINT NAME OF PERSONAL REPRESENTATIVE)

(SIGNATURE OF PERSONAL REPRESENTATIVE)

NOTICE TO CREDITOR ON REJECTED CLAIM

From the date that notice of rejection is given, you must act on the rejected claim (e.g., file a lawsuit) as follows:

1. **Claim due:** within 90 days* after the notice of rejection.
2. **Claim not due:** within 90 days* after the claim becomes due.

***The 90-day period mentioned above may not apply to your claim because some claims are not treated as creditors' claims or are subject to special statutes of limitations, or for other legal reasons. You should consult with an attorney if you have any questions about or are unsure of your rights and obligations concerning your claim.**

COURT'S APPROVAL OR REJECTION

12. [ ] Approved for: $
13. [ ] Rejected for: $

Date:

SIGNATURE OF JUDICIAL OFFICER

14. Number of pages attached: _____

[ ] SIGNATURE FOLLOWS LAST ATTACHMENT

(Proof of Mailing or Personal Delivery on reverse)

ESTATE OF (Name): Estate of Tae Jung Kim DECEDENT	CASE NUMBER: PES-24-307296

PROOF OF ☑ MAILING ☐ PERSONAL DELIVERY TO CREDITOR

1. At the time of mailing or personal delivery I was at least 18 years of age and **not a party** to this proceeding.

2. My residence or business address is *(specify):*
   400 Aviation Blvd., Suite 200
   Santa Rosa, CA 95403

3. I mailed or personally delivered a copy of the *Allowance or Rejection of Creditor's Claim* as follows *(complete either a or b)*:

   a. ☑ **Mail.** I am a resident of or employed in the county where the mailing occurred.
      (1) I enclosed a copy in an envelope AND
         (a) ☐ **deposited** the sealed envelope with the United States Postal Service with the postage fully prepaid.
         (b) ☑ **placed** the envelope for collection and mailing on the date and at the place shown in items below following our ordinary business practices. I am readily familiar with this business's practice for collecting and processing correspondence for mailing. On the same day that correspondence is placed for collection and mailing, it is deposited in the ordinary course of business with the United States Postal Service in a sealed envelope with postage fully prepaid.
      (2) The envelope was addressed and mailed first-class as follows:
         (a) Name of creditor served: Bank of America, N.A.
         (b) Address on envelope:
            P.O. Box 653064
            Dallas, TX 75265-3064
         (c) Date of mailing: October 2, 2025
         (d) Place of mailing *(city and state):* Santa Rosa, CA

   b. ☐ **Personal delivery.** I personally delivered a copy to the creditor as follows:
      (1) Name of creditor served:
      (2) Address where delivered:
      (3) Date delivered:
      (4) Time delivered:

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Date: October 2, 2025

Stephanie Opperman
(TYPE OR PRINT NAME OF DECLARANT)

Stephanie Opperman
(SIGNATURE OF DECLARANT)

Docusign Envelope ID: FB938F82-2B61-442F-B574-4382C461C5DF

EXHIBIT D

Docusign Envelope ID: FB938F82-2B61-442F-B574-4382C461C5DF

ATTORNEY OR PARTY WITHOUT ATTORNEY *(Name, State Bar number, and address)*:
Ronald P. Wargo (SBN 197018)/Chadrick J. Cunningham (SBN 290047)
FRIEDEMANN GOLDBERG WARGO HESS LLP
400 Aviation Blvd., Ste. 200
Santa Rosa, CA 95403
TELEPHONE NO.: (707) 543-4900 FAX NO. *(Optional)*: (707) 543-4910
E-MAIL ADDRESS *(Optional)*: rwargo@frigolaw.com; ccunningham@frigolaw.com
ATTORNEY FOR *(Name)*: Petitioner, HYUN JU MINTON, Administrator

FOR COURT USE ONLY

SUPERIOR COURT OF CALIFORNIA, COUNTY OF
STREET ADDRESS: 400 McAllister Street
MAILING ADDRESS: 400 McAllister Street
CITY AND ZIP CODE: San Francisco, CA 94102
BRANCH NAME: Civic Center Courthouse

ESTATE OF
(Name): Estate of Tae Jung Kim
DECEDENT

ALLOWANCE OR REJECTION OF CREDITOR'S CLAIM

CASE NUMBER: PES-24-307296

NOTE TO PERSONAL REPRESENTATIVE

Attach a copy of the creditor's claim to this form. If approval or rejection by the court is not required, do not include any pages attached to the creditor's claim.

PERSONAL REPRESENTATIVE'S ALLOWANCE OR REJECTION

1. Name of creditor *(specify)*: Bank of America, N.A.
2. The claim was filed on *(date)*: August 28, 2024
3. Date of first issuance of letters: June 26, 2024
4. Date of *Notice of Administration*: July 15, 2024
5. Date of decedent's death: September 23, 2023
6. Estimated value of estate: $ 820,205.72
7. Total amount of the claim: $ 497,782.13
8. [✓] Claim is allowed for: $ 497,782.13 *(The court must approve certain claims before they are paid.)*
9. [ ] Claim is rejected for: $ *(A creditor has 90 days to act on a rejected claim.* See box below.)*
10. Notice of allowance or rejection given on *(date)*:
11. [✓] The personal representative is authorized to administer the estate under the Independent Administration of Estates Act.

Date: 10/2/2025

HYUN JU MINTON
(TYPE OR PRINT NAME OF PERSONAL REPRESENTATIVE)

(SIGNATURE OF PERSONAL REPRESENTATIVE)

NOTICE TO CREDITOR ON REJECTED CLAIM

From the date that notice of rejection is given, you must act on the rejected claim (e.g., file a lawsuit) as follows:

1. **Claim due:** within 90 days* after the notice of rejection.
2. **Claim not due:** within 90 days* after the claim becomes due.

***The 90-day period mentioned above may not apply to your claim because some claims are not treated as creditors' claims or are subject to special statutes of limitations, or for other legal reasons. You should consult with an attorney if you have any questions about or are unsure of your rights and obligations concerning your claim.**

COURT'S APPROVAL OR REJECTION

12. [ ] Approved for: $
13. [ ] Rejected for: $

Date:

SIGNATURE OF JUDICIAL OFFICER

14. Number of pages attached: _____

[ ] SIGNATURE FOLLOWS LAST ATTACHMENT

(Proof of Mailing or Personal Delivery on reverse)

ESTATE OF (Name): Estate of Tae Jung Kim DECEDENT	CASE NUMBER: PES-24-307296

PROOF OF ☑ MAILING ☐ PERSONAL DELIVERY TO CREDITOR

1. At the time of mailing or personal delivery I was at least 18 years of age and **not a party** to this proceeding.

2. My residence or business address is *(specify):*
   400 Aviation Blvd., Suite 200
   Santa Rosa, CA 95403

3. I mailed or personally delivered a copy of the *Allowance or Rejection of Creditor's Claim* as follows *(complete either a or b)*:

   a. ☑ **Mail.** I am a resident of or employed in the county where the mailing occurred.
      (1) I enclosed a copy in an envelope AND
         (a) ☐ **deposited** the sealed envelope with the United States Postal Service with the postage fully prepaid.
         (b) ☑ **placed** the envelope for collection and mailing on the date and at the place shown in items below following our ordinary business practices. I am readily familiar with this business's practice for collecting and processing correspondence for mailing. On the same day that correspondence is placed for collection and mailing, it is deposited in the ordinary course of business with the United States Postal Service in a sealed envelope with postage fully prepaid.
      (2) The envelope was addressed and mailed first-class as follows:
         (a) Name of creditor served: Bank of America, N.A.
         (b) Address on envelope:
         Customer Service, CA6-919-01-41
         P.O. Box 5170, Simi Valley, CA 93062
         (c) Date of mailing: October 2, 2025
         (d) Place of mailing *(city and state):* Santa Rosa, CA

   b. ☐ **Personal delivery.** I personally delivered a copy to the creditor as follows:
      (1) Name of creditor served:
      (2) Address where delivered:
      (3) Date delivered:
      (4) Time delivered:

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Date: October 2, 2025

Stephanie Opperman
(TYPE OR PRINT NAME OF DECLARANT)

Stephanie Opperman
(SIGNATURE OF DECLARANT)